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Promoter Agreement

OFFER TO PURCHASE

Offer Date:

To: Artist or Manager Name

From: Promoter Name

Artist Performance By:

Performance Location:

Performance Date:

Performance Event:

Number of Performances:

DEAL:

- 50% of gross box office revenue, net of GST and expenses (approximated below)
- Support bands at discretion of artist
- All ages
- Artist must use house sound, lights and monitors
- Travel, ground transport, hotels, backline, support band fees and agent fees no included and are the responsibility of the artist

MERCH SALES:

- 70/30
- Artist sells

PERFORMANCE WINDOW:

- Times TBC

TICKET SCALING:



Capacity	Kills/Tech Holds	Available	Comps	Sold	Price	Gross	Net
500	15	485	30	455	\$20	\$9,100	
					Less GST	\$455	\$8,645.00

EXPENSES:

- Expenses are approximate and may change. Please note that SOCAN and credit/debit card fees are variable expenses and will change in accordance with the number of tickets that are sold.
- Any increase to the expenses, except for SOCAN and credit/debit card fees, will be approved with Artists' representative prior to increase.
- All expenses will be supposed by documentation prior to settlement.

Rent/House Nut	\$750
SOCAN/ASCAP (songwriting royalties org.)	\$260
Advertising	\$750
Box Office Fee	\$350
Credit/Debit Card Fees	\$20
Food Services	\$150
Insurance	\$375
Contingency Expenses (10%)	\$300
Misc.	\$250
TOTAL	\$3205

CONDITIONS:

- Number of comps or guest list to be mutually agreeable
- This offer is intended to be an exclusive offer for live public appearance. It is a material term of this offer that the Artist and each individual band member agrees to not perform or make any type of public appearance, and shall not allow any advertising for any type of performance or public appearance, within 250 kms of the venue for the period of beginning as of offer date and concluding sixty days following the confirmed performance date. These excluded public appearances shall include, but are not limited to, concert dates, nightclub appearances, private engagements and live video shoots. Please disclose any confirmed dates currently on the Artist's calendar, as well as any potential offers for the Artist's services, that would conflict with this term. These appearances do not include marketing appearances made by the Artist for the purpose of promoting the Concert.
- Artist agrees to in market radio station phone call-ins and/or pre-recorded audio for show promotion.
- Artist agrees to in market tv station performances and interviews for show promotion
- Artist agrees to in market interviews with print publications for show promotion



- Purchaser reserves the right to review and revise ticket scaling in conjunction with the Artist prior to public on-sale. As part of this offer, Purchaser is granted all rights and control over the ticket inventory and ticketing processes, including without limitation, presales or other sales mechanisms.
- Tickets held by the Artist or Artists' representative for purchase (or payment at settlement) are considered sold, and no more than 20% of such held tickets may be returned for release to the public. Such returns must be released no closer than 14 days prior to the show. Artist holds will be charged to the Artist at full price.
- In the event the show runs beyond the agreed and specified time, the Artist is responsible for the costs associated with the overtime. If a curfew is in effect, the Artist must comply or otherwise be responsible for any costs including penalties or fines.
- Artist shall adhere to all laws, policies, rules and regulations applicable to the Event.
- _____ (Promoter) shall not be responsible for any loss or damage to any property of the Artist of the Venue resulting from the fire, theft or any other cause unless due to the gross negligence or willful misconduct of (promoter), nor shall (promoter) be liable for any loss or damage to persons or property cause by Artist or Artist's employees, representatives, agents, guests and invitees.
- This Agreement may not be modified, altered or amended, except by a written instrument signed by both parties. The parties agree to take such further acts and to execute such further documents that may be necessary or convenient to carry out the intents and purposes of this Agreement.
- You hereby represent and warrant that you have the full power to enter into this agreement on behalf of the Artist, and that the delivery and performance of this Agreement by the Artist has been duly authorized.

OFFER EXPIRY DATE:

Offer accepted:

Signature:

Print Name: